

23NWCV01065 23NWCV01065

County: los-angeles

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Case Number: 23NWCV01065 Hearing Date: August 28, 2026 Dept: P

MARIA DE LOS ANGELES CORDOVA v. SILVIO MANUEL HERNANDEZ

CASE

NO.: 23NWCV01065

HEARING: 08/28/2026 @

9:30 AM

#12

TENTATIVE ORDER

I.

Plaintiff Maria de Los Angeles Cordova's
motion as to the appointment of a referee is GRANTED.

II.

Matthew Taylor is appointed as partition
referee in this matter to manage the sale of the Subject Property.

Moving party to give notice.

Plaintiff Maria de Los Angeles Cordova (Plaintiff) moves to
enforce a settlement agreement between the parties and to appoint a partition
referee in accordance with the agreement.

Background

On April 6, 2023, Plaintiff filed this partition action against Defendant Silvio Manuel Hernandez (Defendant) and all persons presently unknown claiming any interest in the real property at issue, identified as Does 1 through 10. The complaint alleges Plaintiff and Defendant each own a one-half interest as joint tenants in the real property at issue is commonly known as 10005 Birchdale Avenue, Downey, California 90240 (Assessor's Parcel No. 6363-013-010) (Subject Property). (Complaint, ¶¶ 2, 10.) The complaint asserts a single cause of action for partition of real property by sale.

On July 11, 2025, Plaintiff and Defendant appeared for trial and entered into a settlement orally before the Court.

On July 9, 2026, this matter first came on for hearing. The Court granted this motion in part and continued it in part. The Court continued the motion to July 31, 2026 only "as to the issue of who the parties seek to appoint as referee. The parties are instructed to submit briefing or declarations with the name of a referee by July 27, 2026." (Order, 7/9/26.)

On July 31, 2026, this matter came on for hearing again. The Court continued the hearing again based on an absence of filings regarding Defendant's choice of referee.

Legal Standard

Pursuant to Code of Civil Procedure section 873.020, "[t]he court in its discretion may appoint a referee for sale and a referee for division, or may appoint a single referee for both."

Discussion

On July 9, 2026, the Court granted Plaintiff's motion to enforce settlement in part. The only remaining issue is who the parties seek to appoint as partition referee.

Plaintiff proposes Matthew Taylor as partition referee. Plaintiff submits Matthew Taylor's declaration in support of his nomination as partition referee together with his curriculum vitae and fee schedule. (Taylor Decl., Exhs. A, B.)

Counsel for Defendant states that Defendant is not opposed

to the appointment of Matthew Taylor. (Rosiak Decl., ¶ 2.)

In the same declaration, defense counsel states “[w]hat this Declarant is opposed to is to this request for a Partition By Sale but rather to settle the matter so the house is not lost and Ms. Cordova is made whole” and provides an alternative proposal for the disposition of the Subject Property. (Rosiak Decl., ¶ 3.) This argument is moot as to the Court’s involvement in this matter since the only remaining issue is the appointment of a referee. The Court acts solely on the basis of enforcing the settlement between the parties as decided on July 9, 2026. (See Order, 7/9/26.)

Accordingly, Plaintiff’s motion to enforce settlement as to the issue of appointing a referee is GRANTED. Matthew Taylor is appointed as referee in this matter to manage the sale of the Subject Property.